

NON-DISCRIMINATION ON THE BASIS OF A DISABILITY
FOR STUDENTS ENROLLED IN AN ADULT EDUCATION

In accordance with the Americans with Disabilities Act (ADA), reasonable accommodations are afforded to adult students at Loudoun County Public Schools (LCPS) with disabilities based upon documentation received from a qualified professional and the discussion that the student has with the Adult Education Office. This procedure is for all qualified adult education students with a disability enrolled in an Adult Education Program to obtain reasonable accommodations.

A. Process to Set-Up Accommodations. Students wishing to request reasonable accommodations must follow this process. No accommodations will be afforded until the student has completed the prescribed steps and indicated an understanding and agreement with the LCPS recommendations and the student's responsibility in using his/her accommodations. The student may present documentation and register with the Adult Education Office anytime throughout the school year (advance requests are preferred), however, accommodations are not retroactive and an instructor is not obligated to provide accommodations until he /she receives written approval from the Adult Education Office.

1. Adult Student's Responsibilities:

- a. Provide to the Adult Education Office medical documentation of the disability by a qualified professional (unless the disability is an obvious physical disability) and recommendations for accommodations from a qualified medical professional;
- b. Meet with professionals in the Adult Education Office to engage in an interactive dialogue and provide input to determine reasonable accommodations; and
- c. Once the Office and the student agree on a reasonable accommodation, the Office will notify appropriate staff. If no agreement is reached, the Office will offer the student the reasonable accommodation it deems appropriate.

2. Adult Education Office's Responsibilities:

- a. Set aside a meeting time with the student upon his/her request to discuss the accommodations;
- b. Provide the accommodations as enumerated in a reasonable and timely manner;

NON-DISCRIMINATION ON THE BASIS OF A DISABILITY
FOR STUDENTS ENROLLED IN AN ADULT EDUCATION

- c. Provide contact information for the Adult Education Office if a student has questions or concerns regarding an accommodation that has been afforded to a student; and
- d. Respect the confidentiality of the student and not discuss his/her disability or accommodations in front of other students. A teacher does not have the right to ask the nature of a student's disability, however, a student can choose to disclose information about his/her disability.

B. Potential Accommodations. The following is a list of some of the potential accommodations that could be considered based upon the submission of documentation and reasonableness:

- 1. Allowing extended time for LCPS-created testing;
- 2. Permitting audio recording of classes;
- 3. Allowing use of a calculator in mathematics classes;
- 4. Allowing a distraction-reduced setting for testing;
- 5. Allowing essay exams to be completed using word processing;
- 6. Permitting alternative testing which allows for a scribe;
- 7. Utilizing multiple choice tests as much as possible;
- 8. Allowing unanticipated class absences for a documented disability; and
- 9. Allowing extended time to complete classroom activities.

C. Accommodations Not Included:

- 1. Substantial modifications to academic standards or modification or adjustment of requirements essential to any program of instruction, program or activity, or essential to any directly related licensing requirement;
- 2. Personal aids/devices; or

NON-DISCRIMINATION ON THE BASIS OF A DISABILITY
FOR STUDENTS ENROLLED IN AN ADULT EDUCATION

3. Modifications or adjustments that result in undue hardship to the Division considering the nature, cost, and impact of the accommodation.

[Former Regulation 8-13-REG]

Issued: 03/08/2022